

Mallika vs Vipulkumar on 25 August, 2010

Author: Ravi R.Tripathi

Bench: Ravi R.Tripathi

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MCA/1201/2010 4/ 4 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

MISC.CIVIL
APPLICATION - FOR TRANSFER No. 1201 of 2010

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MALLIKA
VIPULKUMAR SHAH - Applicant(s)

Versus

VIPULKUMAR
BABULAL SHAH (STAFF NURSE) - Opponent(s)

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Appearance
:
MR NEHUL L DAVE for
Applicant(s) : 1,
MR MATAFER R PANDE for Opponent(s) :
1,
=====

CORAM

:

HONOURABLE

MR.JUSTICE RAVI R.TRIPATHI

Date
: 25/08/2010

ORAL
ORDER

1.0 Present petition is filed by one Mallika Vipulkumar Shah and the prayer made in the application is:

10(B). Be pleased to transfer HMP Case No. 189 of 2009 filed by the opponent from the Court of Family Court at Surat to the Family Court at Ahmedabad, in the interest of justice.

2.0 In Para 2, it is stated that:

That the brief facts of the application is that after the birth of the Son the present opponent has started to play the game of gambling and because of this habit the opponent had many time snatched away the hard earned income of the present applicant and because of this behaviour of the present opponent it was very difficult for the present applicant to maintain the house and to meet with the expenditures required to be incurred in the upbringing of son Zenith. That the opponent is also working in the Government Hospital but he spent his whole income for his gambling activities and thereafter, the opponent took away the salary of the present applicant.

2.1 In Para 4, it is stated that:

That the applicant submits that after she joined the General Hospital at Sola, Ahmedabad the present applicant has asked maintenance for her son Zenith because he is at present will be going to 9th Standard but the present opponent has refused to give any maintenance amount to son Zenith and therefore, to avoid giving of maintenance to son Zenith, the opponent has filed application for fulfillment of conjugal rights under section 9 of the Hindu Marriage Act. Copy of the notice and memo of the application is annexed hereto and marked as Annexure-A. 2.2 Para 5 states as under:

That the present applicant thereafter filed Maintenance Application before the Family Court at Ahmedabad seeking maintenance for her son Zenith under section 125 of Cr.P.C. vide Criminal Misc. Application No. 957 of 2010. Copy of the said application is also annexed hereto and marked as Annexure-B.

3.0 In the opinion of this Court, no case is made out for transfer. Hence, this application is dismissed. Rule is discharged with no order as to costs.

[Ravi R. Tripathi, J.] hiren